

TRANSMITTAL AND REQUEST FOR ENTRY OF THE EXPUNGEMENT ORDER REQUIRED BY
VA. CODE SEC. 19.2-392.2(I)

To: the Clerk of the Circuit Court of
(THE VIRGINIA COUNTY OR CITY WHERE THE CONVICTION WAS HAD - that circuit court's
clerk can confirm it, and can tell you how this court styles a caption)

From: Maria-Alejandra O'Shaughnessy-Whitfield
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RE: TRANSMITTAL OF AN ABSOLUTE PARDON, AND REQUEST FOR ENTRY OF THE
EXPUNGEMENT ORDER REQUIRED BY VA. CODE Sec. 19.2-392.2(I)

SEND THIS REQUEST ONLY IF the pardon document says it is an ABSOLUTE pardon, and says it is
for a crime you did not commit. Va. Code Sec. 19.2-392.2(I) turns on exactly those words. If the pardon is
conditional, partial, or a simple pardon granted as clemency, this is not your route - the records checklist
page says who to ask.

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, was convicted in this Court of the charge identified
below, and the Governor of Virginia has since granted me an absolute pardon for the commission of a
crime I did not commit.

2. The conviction and the pardon are identified as follows, from the court record and from the pardon
document themselves:

Full name used at the time of arrest, exactly as the court record states it:

.....

Charge of which I was convicted, and the Code section it was under, worded exactly as the court record
words them:

.....

.....

Case number of the conviction, as it appears on the court record:

.....

Date of arrest, and the agency that made the arrest:

.....

Date of the offence:

.....

How the case ended, and on what date (from the case file, checked against your own CCRE record):

.....

Date the Governor granted the absolute pardon, as the pardon document states it:

.....

3. Enclosed with this request is a certified copy of the absolute pardon, obtained from the Office of the Secretary of the Commonwealth. Va. Code Sec. 2.2-402 is the route by which a copy of the pardon reaches this Court; this transmittal encloses the certified copy and confirms that transmission.

4. Upon receiving a copy of an absolute pardon for the commission of a crime that a person did not commit, Va. Code Sec. 19.2-392.2(I) requires the court to enter an order requiring the expungement of the police and court records relating to the charge and conviction, and requires that the order state that the expungement is ordered pursuant to that subsection. The duty arises on the court's receipt of the pardon copy, not on a petition, and no fee is stated in Sec. 19.2-392.2(I) for this request.

5. I therefore ask the Court to enter the order of expungement that Va. Code Sec. 19.2-392.2(I) requires, stating that the expungement is ordered pursuant to that subsection, and to forward a copy of the order to the Department of State Police as Va. Code Sec. 19.2-392.2(K) provides.

DATE SIGNATURE

(You sign and date this request personally. Nothing on this page is signed or dated for you.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

Route: obligation:track-pathway:VA:va_exp_absolute_pardon:regime-1-expungement-available-now

RECORDS CHECKLIST

For: Maria-Alejandra O'Shaughnessy-Whitfield

Three records are needed before the transmittal and request can be completed and sent. Each is listed with the body that issues it. This packet does not obtain, inspect or review any of them; you obtain each yourself.

ONE. THE CERTIFIED COPY OF THE ABSOLUTE PARDON.

Ask the Office of the Secretary of the Commonwealth for a certified copy of the pardon. Whether it is absolute, and whether it recites that the crime was one you did not commit, is what Va. Code Sec. 19.2-392.2(I) turns on - read the document's own words before sending anything. If the pardon is not absolute, or does not recite innocence, stop: this route is not yours, and the Secretary of the Commonwealth's office is the authority that can say what kind of pardon was granted.

TWO. THE COURT CASE FILE.

Ask the clerk of the circuit court of the county or city where the case was disposed of for the case papers. District court charges are handled by that locality's circuit court, so that is where to ask even for a general district court charge. The charge wording, the Code section, the case number, the arrest date and agency, the offence date and the disposition all come from this file - never from memory.

THREE. YOUR OWN VIRGINIA CRIMINAL HISTORY RECORD.

Request your own copy from the Virginia State Police, Central Criminal Records Exchange, for the fee they charge. This is a different thing from the court's copy. Check how the case ended against it, and correct the request if the records disagree. The Norfolk clerk's recorded guidance is that the case is established with the court first and any State Police request comes second, so the sequence matters.

This page names no other document. Va. Code Sec. 19.2-392.2(I) requires no fingerprint card, no filing fee and no manifest-injustice showing, and this packet states no requirement that no record it is built from states.

Route: obligation:track-pathway:VA:va_exp_absolute_pardon:regime-1-expungement-available-now

FILING INSTRUCTIONS

This packet is prepared for clearing a Virginia conviction the Governor has absolutely pardoned, under Va. Code Sec. 19.2-392.2(I).

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT THIS ROUTE IS

Va. Code Sec. 19.2-392.2(I) prescribes no petition. Once the circuit court that convicted you receives a copy of an absolute pardon for the commission of a crime you did not commit, the court must enter an order expunging the police and court records relating to the charge and conviction, and the order must state that the expungement is ordered pursuant to that subsection. The outcome is mandatory once the court has the pardon; there is no waiting period, no fee stated, no fingerprint step and no manifest-injustice showing on this subsection. What you send is a written transmittal and request - the first page of this packet - enclosing the certified pardon and asking the court to enter the order it must enter.

WHAT YOU DO, IN ORDER

STEP ONE. Gather the three records the checklist page lists: the certified copy of the absolute pardon from the Office of the Secretary of the Commonwealth, the case file from the clerk of the circuit court of the locality of conviction, and your own CCRE record from the Virginia State Police.

STEP TWO. Read the pardon document's own words. Send this request only if it says it is an absolute pardon, and says it is for a crime you did not commit. If it does not say both, stop - the checklist page says who can tell you what kind of pardon was granted.

STEP THREE. Fill in every dotted blank on the transmittal and request, from the records. Do not guess a date, a charge wording or a case number.

STEP FOUR. Sign and date the transmittal and request yourself.

STEP FIVE. Send the transmittal and request, with the certified copy of the pardon, to the clerk of the circuit court of the county or city where the conviction was had. No fee is stated in Sec. 19.2-392.2(I). Subsection (I) prescribes no service on anyone else: the Commonwealth's twenty-one-day window in subsection (D) applies to a petition, and this is not a petition route.

STEP SIX. After the order is entered, a copy goes to the Department of State Police under Sec. 19.2-392.2(K). The State Police validate the accuracy of the record, and expressly not its eligibility - that determination is the court's.

TWO THINGS THE RECORD OF THIS ROUTE ALSO SAYS

- The expungement order is mandatory once the court has the pardon copy, and it must state that the expungement is ordered pursuant to Sec. 19.2-392.2(I).
- An expungement order is voidable within three years for failure to strictly comply with the statute's requirements, which is a reason to copy every record exactly and never to guess.

WHEN TO STOP AND GET HELP INSTEAD OF SENDING

Stop, and take this packet to a lawyer or a legal-aid office, if any of these is true:

- the pardon is not absolute, or does not recite that the crime was one you did not commit;
- the circuit court declines to enter the order despite having the pardon;
- you are still seeking the pardon itself, which is a separate executive process this packet does not cover;
- any immigration question is involved.

WHAT THIS PACKET DOES NOT TELL YOU

- How the clerk of your particular circuit court styles a caption or docketing for a Sec. 19.2-392.2(I) request. No record this packet is built from establishes it. The clerk of the circuit court of the locality of conviction is the authority that can answer - ask before you send if you are unsure.
- What the CCRE charges for your own record copy. The fee is theirs to state.

WHAT THIS PACKET IS NOT

This is a prepared transmittal and request with its checklist and instructions. It is not an official Supreme Court of Virginia form - none is prescribed for Sec. 19.2-392.2(I), and CC-1473 is captioned to subsection (A) alone and is not this instrument - and it is not legal advice, it is not filed for you, it does not obtain the pardon for you, and it does not decide whether the pardon satisfies the subsection. Sealing restricts access; expungement removes.

Route: obligation:track-pathway:VA:va_exp_absolute_pardon:regime-1-expungement-available-now